

Request for Proposal

Procurement & implementation of Logistics Digitization and Automation for Mines – Phase-2

AM/NS India, Mining Division

Project Name: Logistics Automation and Digitization – Phase-2	
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

Table of Contents

Contents

GLOSSARY OF ACRONYMS.....	5
1 COMPANY INFORMATION	6
1.1 The ArcelorMittal Group	6
1.2 The Nippon Steel Group.....	6
1.3 ArcelorMittal Nippon Steel India.....	6
2 ABOUT THE PROJECT	7
3 PURPOSE AND RELEVANCE OF THIS DOCUMENT	8
4 GUIDELINES ON RFP	9
4.1 General Guidelines	9
4.2 Schedule of action on RFP	10
4.3 Amendment in the RFP	10
4.4 Cancellation of RFP.....	10
4.5 Costs.....	10
4.6 Confidentiality of RFP.....	12
4.7 The Requester’s Contact information	12
5 SCOPE OF WORK	14
5.1 Organizational Scope.....	14
5.2 Key performance indicators (KPI)	14
5.3 Process flow diagram – High level.....	15
5.4 Key Challenges vs To be solution.....	15
5.5 Scope of Services	17
5.6 Functional Requirement	18
5.7 Required System Capabilities (To be) :	23
5.8 Mines Detailed Process flow with integration requirement.	25
26	
5.9 TO-BE process flow – Outbound logistics (Inside plant process) with Trace & Track implementation	27
5.10 LOGISTICS VENDOR PERFORMANCE MANAGEMENT & AUTOMATION	28
5.11 Compliance monitoring and tracking:	28
5.12 Compliance monitoring and tracking:	28
5.13 Data protection and cyber security compliance.....	28
5.14 General requirement:	29
6 PROJECT CONSIDERATIONS	30

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

6.1	General Consideration	30
6.2	Technical Considerations.....	30
6.3	Activity Management Tools & Other Considerations	30
7	CRITICAL SUCCESS FACTORS.....	31
8	PROJECT APPROACH, TIMELINES & RESOURCES	31
8.1	Implementation Approach	31
8.2	Go-Live Support / Run Phase	31
8.3	Implementation Timelines	32
9	PROJECT ORGANIZATION STRUCTURE	32
9.1	The different components of the project organization are as provided below: Project Steering Committee.....	32
9.2	Project Management Office (PMO).....	32
9.3	Technical Project Team	32
9.4	The Requester’s IT Team Deployment Plan.....	33
9.5	Team from the Vendor.....	33
10	OPERATING PRINCIPLES	34
10.2	Bidder contact information	35
10.3	Risk Management & Governance.....	35
10.4	Other Information required in technical proposal	35
11	GUIDELINES FOR COMMERCIAL PROPOSAL	36
11.1	Warranties	36
11.2	Liabilities	36
11.3	Stamp duty	36
11.4	Invoicing.....	36
11.5	Price protection.....	37
11.6	Payment terms.....	37
11.7	Liquidated Damages	37
12	LEGAL TERMS AND CONDITIONS.....	38
12.1	Performance Guarantee.....	38
12.2	Intellectual Property	38
12.3	Accident/Safety	39
12.4	Confidentiality	39
12.5	Governing Law and Jurisdiction.....	39
12.6	Change in law	39
12.7	Term, Termination, and Suspension.....	39
12.7.1	Termination for Convenience	39
12.7.2	Termination for Cause	40

Project Name: Logistics Automation and Digitization – Phase-2	
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

12.7.3 Right to suspend the Agreement:	40
12.8 Force Majeure.....	40
12.9 Indemnity.....	40
12.10 Compliances.....	41
The Bidder shall comply with:	41
12.10.1 Compliance with Applicable Laws	41
12.10.2 Compliance with Buyer’s Policies	41
12.10.3 Compliance with Trade and Export Control Laws.....	41
12.11 Priority of Documents.....	41
12.12 Other provisions.....	42
ANNEXURE A: CYBER SECURITY POLICY FROM THE REQUESTER	43
ANNEXURE B: ADDITIONAL SOX REQUIREMENTS	44
ANNEXURE C: PRE-QUALIFICATION / ELIGIBILITY CRITERIA.....	45
ANNEXURE D: PRE-BID QUERIES FORMAT	48
ANNEXURE E: PROJECT REFERENCES FOR EXPERIENCE OF BIDDER.....	49
ANNEXURE F: PERFORMANCE BANK GUARANTEE	50

Project Name: Logistics Automation and Digitization – Phase-2	
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

GLOSSARY OF ACRONYMS

Acronym	Expansion
AM Group	ArcelorMittal Group
AM/NS India	ArcelorMittal Nippon Steel India Private Ltd.
AMNS	ArcelorMittal Nippon Steel India Private Ltd.
EBITDA	Earnings Before Interest, Taxation, Depreciation and Amortization
TAT	Turn Around Time
OEM	Normally stands for Original Equipment Manufacturer here means the Original Product Creator
USP	Unique selling proposition
SPOC	Single point of contact
SLA	Service level agreement
THM	Thakurani Mines
SGSH	Sagasahi Mines
LD	Liquidated Damages
RFP	Request for Proposal

Project Name: Logistics Automation and Digitization – Phase-2	
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

1 COMPANY INFORMATION

1.1 The ArcelorMittal Group

With steel manufacturing facilities in 17 countries, customers in 167 countries, and about 168,000 employees, The ArcelorMittal group is more than just a company, we are a community. We are driven by an entrepreneurial spirit and a passion for excellence. Our goal is to help build a better world with smarter steels. Steels made using innovative processes which are more efficient, use less energy, and emit significantly less carbon. Steels that are cleaner, stronger, and reusable. Steels for electric vehicles and renewable energy infrastructure that will support societies as they transform through this century. We never accept that the limits of our material have been reached. We will continue to push boundaries, whether developing technologies to reduce the carbon footprint of steel, transforming the built environment with our new construction solutions, 3D printing automotive parts using steel powders, or, through the adoption of artificial intelligence and advanced automation across our operations.

1.2 The Nippon Steel Group

Based on the long accumulation of technology through steelmaking, the Nippon Steel Group operates businesses in four areas: steelmaking and fabrication, engineering and construction, chemicals and materials, and system solutions, with the core business being steelmaking. The Nippon Steel Group has manufacturing facilities in over 15 countries and is committed to provide high-performance and high-quality steel products to its customers across the globe.

1.3 ArcelorMittal Nippon Steel India

A joint venture between the ArcelorMittal Group and the Nippon Steel Group, ArcelorMittal Nippon Steel India (AM/NS India) is a leading integrated flat carbon steel manufacturer in India - from iron ore to ready-to-market products – with an achievable crude steel capacity of 9 million tonnes per annum (MTPA). Our manufacturing facilities comprise iron making, steelmaking, and downstream facilities spread across India. This RFP is being floated by ArcelorMittal Nippon Steel India Private Limited (AM/NS India, alternatively also referred to as the “Requester” or “AMNS”).

Project Name: Logistics Automation and Digitization – Phase-2	
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

2 ABOUT THE PROJECT

AMNS India, through its Mining Division is planning to implement Logistics Automation and Digitization Phase-2 solution for outbound logistics for its Mines (“Project”), to avail the benefits that the technology is popular for. Since these are mission-critical applications, the Requester needs to understand what the risks would be involved, how do the prospective partners propose to mitigate those risks, what would be the strategies of implementation and how these systems will be maintained thereafter. The primary objectives of this Project are:

- 1. Automation and Digitization:** To automate and digitize end-to-end logistics operations to improve efficiency across Organization.
- 2. Eliminate Manual Intervention:** Our Focus is to eliminating manual tasks at critical checkpoints such as gate entries, weighbridges, Safety Points, and loading points etc.
- 3. Real-Time Vehicle Tracking (Trace & Track):** Integration of GPS, RFID, and Fast-tag technologies to enable real-time tracking of vehicles across the mines, during transit and at the delivering plant.
- 4. Seamless Interface with Systems:** We will ensure smooth communication with i3MS, ULIP, Vahan, m-Parivahan, FOIS, SAP S/4HANA, iMHS, and other regulatory and non-regulatory systems.
- 5. Central Command and Control Centre:** Enhancing the capabilities and efficiency of existing Command and Control Centre for real-time monitoring, alerts, analytics, and reporting is crucial. Detailed analytics, alert and KPI dashboard to be provided.
- 6. Mobile Application Implementation:** A mobile application to be developed for capturing and validating field data and managing alerts for seamless integration.
- 7. Improving Compliance:** We will enhance transporter and driver compliance using performance metrics and mechanisms for blacklisting.
- 8. Improving Safety:** We will enhance Mines safety using performance metrics and mechanisms to alert on high speeding, rash driving, not following the safety compliance etc.

Through this Request for Proposal (‘RFP’), AMNS intends to evaluate the various potential bidders with respect to its requirements and select the one best fitting its requirements. This RFP invites potential bidders, to provide systems under consideration, integrating with the existing IT landscape at AMNS, and ensuring agility & extensibility of the resultant system architecture to accommodate changes in the future. Potential bidders are henceforth referred to as “Bidder” or “Vendor” in this RFP.

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

3 PURPOSE AND RELEVANCE OF THIS DOCUMENT

- Define scope of the project
- To understand and assess the offerings by Bidders
- Invite competitive bids
- Provide details and instructions about the organization and its policies

This RFP is being issued to Bidders with a designated due date of response. The RFP response by the Bidder ('Proposal') will be reviewed by the Requester. Questions and clarifications, if any, will be sent to the Bidder. The Bidder should send the Proposal, prepared in accordance with the procedures enumerated in this RFP. Late submission of Proposal will result in an automatic rejection of Proposal unless otherwise expressly approved by the Requester. The RFP does not commit the Requester to enter into a binding agreement in respect of the Project with the Bidder. The services contemplated under the Proposal submitted by the Bidder ('Services') should comply with the location-specific laws and regulations as applicable to the Services and the operations at site of the Requester, as well as the laws of all applicable jurisdictions where the Bidder or the Requester operate or where the Services will be provided to the Requester or any subsidiary of the Requester ("Applicable Law"). For India, Applicable laws shall include all laws, rules, statutes, ordinances, regulations, or guidelines laid down by any instrumentality of the state, including without limitation the Government of India, the Ministry of Electronics and IT of the Government of India (MeitY), and CERT-In, or any other statutory or regulatory body. All regulatory, statutory, judicial or quasi-judicial bodies operating shall be referred to as "Government Instrumentality" in this RFP. The Bidder will be subject to terms of this RFP which will be incorporated, elaborated, and formalized in a Service Agreement, and other related agreements ("Agreement") to be executed between the Requester and the successful Bidder as determined by the Requester (together, the Parties). The successful Bidder as determined by the Requester shall be the contracting party for the Agreement, and it shall be the responsibility of such successful Bidder to ensure compliance by all the third-party service providers and suppliers who shall be involved in the provision of the Services and completion of the Project through back-to-back agreements as per the terms of the Agreement. It is clarified for the avoidance of doubt that the Bidder shall be solely responsible for the completion of the Project and be the single point of contact for the Requester. The Bidder is also responsible for ensuring that all its empanelled/ authorized service providers execute valid contracts with its employees/contractors involved in the provision of Services under the Agreement, to ensure compliance by all such individuals with the obligations set out under this RFP and the Agreement.

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

4 GUIDELINES ON RFP

4.1 General Guidelines

1. The Bidder must comply with the qualification criteria mentioned in Annexure C and should provide the requested documents to validate the qualification.
2. Technical Proposals against this RFP must address the scope points mentioned in this RFP, and the sequence of the specification provided in this RFP. No change in sequence will be accepted for any discussion and evaluation process, otherwise than at the discretion of the Requester.
3. Technical Proposal must contain a section with the following explicit declaration regarding the scope points –

“Bidder or Lead Bidder (in case of a consortium) agrees that they will provide all scope items as mentioned in RFP, except for following services/products.” (This exception list must be exhaustive and shall not contradict or be inconsistent with any of the scope items identified under this RFP)
4. Technical proposal must contain a section with the key action/responsibilities expected from the Requester with the timeline
5. As the project intends to improve on the identified KPIs as detailed under Section 5.2, the Bidder shall provide quantitative values for the intended improvement in key KPI's.

Major KPIs	Direct Benefits	KPI Definition	Improvement (%Age)
Shipment planning	Vehicle placement efficiency	Vehicle Placement by Transporter within __ hours of DO released	
	Dispatch Efficiency	Material Dispatched within __ hour of DO release	
	Dead freight reduction	Truck loading up-to max possible tonnage which can truck carry as per i3MS rule	
Shipment Execution	TAT	TAT reduction from DO generation to exit time inside Mines TAT reduction during transit TAT reduction inside Plant premises	
	% of dispatch in pre-defined mode	Actual dispatched through pre-defined route	

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

Shipment Visibility	Transit time reduction	Lead time reduction from dispatch to delivery receipt at plant	
	On-time in full (OTIF)	delivery receipt in full quantity as per due date	
Single KPI Integrated	Integrated Platform for KPI	Single integrated platform to provide in depth monitoring and visibility	

4.2 Schedule of action on RFP

Sl. No.	Activities	Target Date
1	RFP submission to candidate Bidders	
2	Internal study of RFP by Bidders	
3	Scope discussions/explanation to Bidders. No individual call / email-based response will be provided on any queries. All Bidders' queries will be addressed through formal sessions only. Bidders to send all queries in advance as per the format provided in Annexure D: Pre-bid queries Format	
4	Release of amended RFP with the inclusion of 1. Amended SLA, RACI Matrix, liquidated damages clauses 2. Any other points coming up as an area for updated requirements	
5	Submission of techno commercial proposal	
6	Proposal – Technical Evaluation (Bidders will do an end-to-end presentation of their proposals based on the schedule provided by The Requester)	
7	Commercial Proposal submission by Bidders	

4.3 Amendment in the RFP

At any time before the deadline for submission of Proposals, the Requester may, for any reason, whether at its own initiative or in response to a clarification requested by a Bidder, modify the RFP by amending, modifying and/or supplementing the same. Any amendments/modifications in the RFP would be sent via email to all Bidders, and all such amendments shall be binding on the Bidder without any further act or deed on the Requester's part. In the event of any amendment or any other reason, the Requester reserves the right to extend the deadline for the submission of the Proposals, in order to allow Bidders reasonable time to take the amendment into account while preparing their Proposals. Submission of the Proposal by the Bidder shall be deemed to be in acceptance of all the terms and conditions of this RFP, as amended till the date of such submission of Proposal, without any further requirement of any act by the Requester.

4.4 Cancellation of RFP

The Requester at its own discretion may decide to not go ahead (in part or in whole) with the scope mentioned in this RFP. The Bidder will not hold the Requester liable for any losses incurred by the Bidder as a result of this cancellation.

4.5 Costs

This RFP does not obligate the Requester to pay any costs that the Bidder may incur in the preparation or delivery of its Proposal, and further information as may be requested by the Requester. All costs associated with the preparation and delivery of the Proposal and the relevant information shall be the sole cost and responsibility of the Bidder. Unless specifically agreed under the Agreement any further costs incurred or resulting from making arrangements to provide

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

the Services to the Requester under the Agreement shall also be on account of the successful Bidder.

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

4.6 Confidentiality of RFP

This RFP and the information in connection with or relating to this RFP which is provided by the Requestor, are confidential and proprietary to the Requester. Bidders agree that they shall not disclose, duplicate, copy, extract, distribute, or otherwise disseminate or make available any information provided by the Requester without the express written consent of the Requester.

Notwithstanding the foregoing, Bidders may make this document available to those employees who have a need to know its contents to participate in the preparation of the response, and only to the identified system implementation partner that together or independently are the Bidders under this RFP; however, Bidder must first communicate the terms and conditions of this section to the intended recipient, and ensure that such recipient is bound by the terms of confidentiality similar to the terms mentioned in this RFP. If the Bidder is required to disclose any such information to a third-party service provider or system integrator, the Bidder shall do so strictly on a need-to-know basis and disclose and declare to the Requester the details of all such third-party recipients of such information. It is the duty and obligation of the Bidder to ensure that such third-party recipient abides by the terms of confidentiality as mentioned in this RFP. The Bidder shall not include or reference this RFP, the Agreement, its contents thereof in any public or media communication without the prior written approval from the Requester. The Bidder must accept all the foregoing terms and conditions without exception. All responses to this RFP (including all intellectual property rights there in) will become the property of the Requester and will not be returned.

The obligations of confidentiality under this RFP shall survive the expiry/ cancellation of this RFP, unless specifically superseded by a definitive Agreement executed between the Requester and the Bidder.

AM/NS may disclose confidential information received from the Bidder to its employees, agents, service partners, officers, directors, subsidiaries and legal and financial advisors solely to the extent necessary for the Project. Further, the Bidder shall have no objection to any participation of AM/NS representatives as mentioned above, in any discussion/meetings in relation to this Project with the Bidder.

4.7 The Requester's Contact information

For questions or concerns in relation to this RFP, please reach out to the following: **Technical Contact:**

- 1) Mr. Ejaz Ahmad
Mobile No: 7750977916
E-Mail: ejaz.ahmad@amns.in
- 2) Mr. Amit Dubey
Mobile No: 9234510671
E-Mail: amit.dubey@amns.in
- 3) Mr. Manas Bahera Mobile No: 7846817954
E-Mail: manas.bahera@amns.in
- 4) Mr. Kuntal Chakraborty
Mobile No. : 9916335489
E-Mail : kuntal.chakraborty@amns.in

Commercial Contact:

- 1) Mr. Girija Das

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

Mobile No: 9437058486

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2) Mr. Rohit Pandey

Mobile No: 7077769975

E-Mail: rohit.pandey@amns.in

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

5 SCOPE OF WORK

The Bidder must always comply with the below mandatory requirements. Compliance must be ensured on an ongoing basis. Bidders are required to provide confirmation on the below mandatory requirements as a part of its Proposal. The high-level technical scope of the engagement is provided in this section. The scope as provided in this section is indicative and non-exhaustive and shall include all ancillary and necessary activities that might be required to achieve the identified deliverables and for the successful completion of the Project. The requirements for new deliverables such as new standards, frameworks, guidelines, user documentations, training artifacts, post-migration additional hyper-care may be discovered while requirement gathering, and system implementation is in progress. Bidders should ensure all such things are included in the technical Proposal based on their experience and be flexible to accommodate new deliverables/requirements in the future on a need basis.

5.1 Organizational Scope

The engagement will cover each of the below entities and any other subsidiary of the Requester that may be set up, acquired, reorganized or otherwise come into existence during the term of the Agreement.

- AM/NS India Limited – Thakurani Mine
- AM/NS India Limited – Sagasahi Mine

While the project implementation currently is being considered with respect to the AM/NS India Mining Division (Thakurani and Sagasahi) in the first phase. The Requester may upon any subsequent requirement and at its sole option, subject to the eligibility and satisfactory performance of the Bidder under the Agreement, consider extending the services of the Bidder to all other Mining Unit of AM/NS India, pursuant to definitive instruments executed between the Parties.

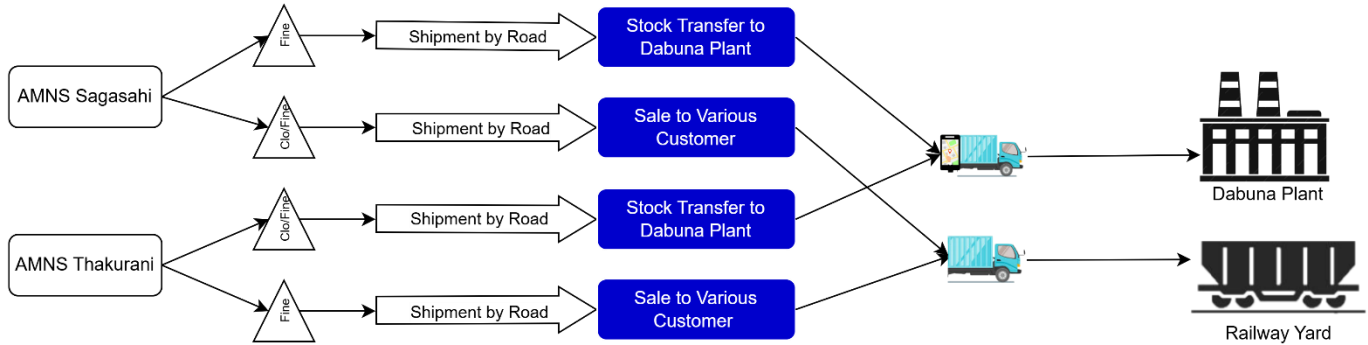
5.2 Key performance indicators (KPI)

Betterment of the following KPIs is the reason for which the current project is being taken up

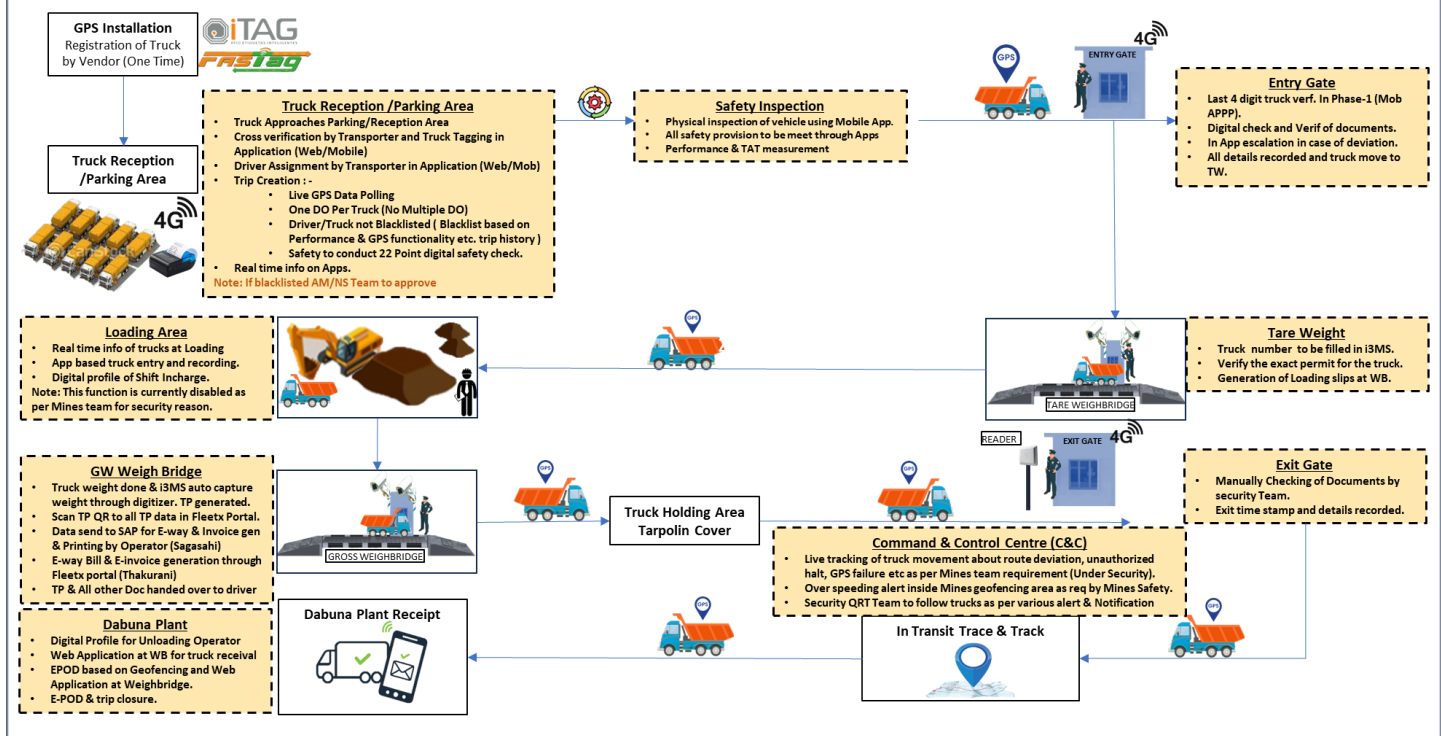
- Vehicle placement efficiency
- Leak Proof system
- Dispatch efficiency
- TAT reduction
- Transit time reduction
- Safety Enhancement
- Transporter performance Score (Dispatch to delivery time, Trip time, Damage free delivery, DLO acceptance ratio)
- Internal process TAT (DO Placement, Tagging, Safety points, tare weighing, Loading, weighing, Dispatch)
- Forecasting accuracy (Forecast compliance)
- Route adherence
- Truck retention % in TPA

5.3 Process flow diagram – High level

Overall process flow – high level



AMNS Mines Truck Flow Diagram (Digitization Phase-1)



5.4 Key Challenges vs To be solution

	Current Challenges	To be Solution
1	Semi manual processes (dispatch, vehicle movement, weighment, documents, etc.)	Full process automation using: - RFID/FASTag, Camera & IOT devices. - Automated weighbridges & Gates - Automatic document printing (E-way, Invoice, Digital LR etc.) - SAP & i3MS integration
2	Lack of visibility on Turnaround Time (TAT)	TAT to be tracked and recorded at every touchpoint (gate-in, loading, weighbridge, gate-out) - TAT reports per trip, truck, and transporter - Real-time KPIs via dashboards. - Current TAT to be significantly reduced

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

3	Delays due to manual process and error free operation :	Automated workflows reduce human intervention: • Gate entry/exit via RFID • IOT based Weighbridges for Auto weighment process. (Man less) • Real-time approvals on mobile and App's
4	Revenue loss from theft and pilferage	Real-time vehicle traceability: • 100% GPS + geo-fencing, alerts for unauthorized stoppages or route deviations • EPOD and Weighbridge Integration at Receiving Plant
5	Accurate data flow	Centralized digital platform with: • API-based data flow between SAP, i3MS & ULIP • Automatic data sync, no duplication • Mobile/web-based validation
6	Low productivity due to manual interventions	Role-based digital interfaces for each stakeholder: • Mobile apps for security, operators, shift in- charge, Loading Operator etc.
7	Lack of coordination and communication between stakeholders	Vendor collaboration module: • Transporter self-service registration and Real Time Dashboard. • Central dashboard for all departments • Notifications at every workflow step
9	No real-time deviation alerts or notifications	Live alerts for: • Route deviation, Over Speeding • GPS malfunction • Unauthorized halt • Other Alerts and notification as per business need. • All shown in Command Centre and respective users' login.
10	Manual TP, E-way bill, invoice generation and printing	Auto-documentation via i3MS and SAP integration: • Auto TP from i3MS. • Auto Invoice & E-way bill from SAP. • Print at gate automatically with RFID truck ID trigger.

To address the above challenges, it is required to implement state-of-the-art "Outbound Logistics Automation and Digitization" and Track and trace solutions with command-and-control center. These solutions automate the critical stages of the logistics processes using advanced unified digital layers. The solution should eliminate the manual processes and provide clear visibility on the entire process right from dispatch planning to the delivery at receiving plant and also to integrate with receiving plant existing application or to extend the existing Mines system to receiving plant for end-to-end closure and management. The integration directly with AMNS's ERP system (S4 HANA) and I3MS, eliminates the need for manual data entry at various stages. Various data points across the stages will be automatically captured and pushed to the ERP and I3MS system, ensuring seamless operations and reducing the risk of human error.

The implementation of the solution should significantly reduce turnaround times (Inside Mines, in route and at receiving Plant), optimize resource utilization, and enhance process transparency through a robust digital layer. Real-time tracking of trucks and materials should provide end-to-end visibility, while automated systems will improve coordination between various stakeholders. Furthermore, the solution should capture comprehensive data for audits and reports, enabling AMNS to gain actionable insights and maintain a detailed operational record.

Overall, the adoption of the solution should transform AMNS's mining operations, enhancing efficiency, reducing costs, and providing a modern, automated framework for managing truck and material movements. This system will address current inefficiencies while future-proofing logistics processes for sustained operational excellence.

Project Name: Logistics Automation and Digitization – Phase-2	
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

5.5 Scope of Services

Dispatch Planning

Stack Management

Safety Management

Gate Management (Man less)

Fully Automated Weighbridge (Man less)

Auto documentation (TP-i3MS, E-way Bill, E-invoice etc at exit Gate)

Trace & Track

Gate Management and Delivery at Dabuna plant

Central Command and Control Centre

Advanced analytics related to safety, Enroute deviation, Exceptions handling, Driver and transporters score cards and TAT reduction of various stages.

Integration with SAP ,i3MS ,IMHS and various hardware.

A. Order Allocation, Trip & Dispatch Management	B. Safety Management
- Stack and Order Management - Trip creation via web and mobile apps - Details fetch from SAP to validate the DO, DO created by Vendor, Permit(i3MS map with SAP)/SO/STO mapping to trips - Real-time vehicle and driver verification (ULIP) - Vehicle tagging verification using i3MS. - Auto rejection of trips lacking active GPS data poling, Valid RFID, valid trip tag-i3MS and failed to Statutory documentation clearance. - Integration with SAP for DO Creation. - TAT & Escalation Management.	- Portable RFID based Tab verification of trucks - Vehicle inspection via mobile app. - Provision of uploading vehicle inspection pics/video. 22 Points of Safety checks validation using App - Provision of Speed alert inside Mines (Route Geofencing) & outside Mines as per AMNS Requirements. - Real-time vehicle queue management - TAT & Escalation Management.
C. Unmanned Gate Entry/Exit	D. Weighbridge Automation (Tare & Gross)
- Fast-tag/ANPR-based vehicle identification & Validation - Automated boom barriers and traffic light systems - Smart Camera based photo capture (Top & Front) - Auto document validation and gate timestamping - Exception and escalation handling - TAT Management.	- No manual intervention at weighbridges (Man Less) - Sensor-based vehicle positioning and weight capture - Smart camera-based photo capture (top, side & front) - Auto Weighment capturing as per i3MS procedure. - Auto generation of TP in i3MS as per predefined rule. - Auto receive TP copy and Auto push to SAP - Auto e-Invoice and E-way bill generation in SAP. - TAT & Escalation Management.
E. Loading Operations	F. Exit Process and Document Handover
- Portable RFID scan-based vehicle verification & Info - Supervisor notification via app for material allocation. - Loading checklist validation on App - Entry and exit timestamping. - TAT & Escalation Management.	- Final document validation (TP, Invoice, E-Way Bill, LR) - Auto print of all documents generated at GW based on truck number (RFID/ANPR) - Security check and timestamping - TAT & Escalation Management.
G. Dabuna Plant Integration	H. Command & Control Centre
- Vehicle entry validation via TP QR Code/RFID (Tab) - EPOD and web application at Dabuna / Integration with existing iMHS system for Auto vehicle and Gross weight related data. - Quality Dashboard of live material (truck wise) approaching Dabuna within 5, 10 & 15 KM with expected timeline to reach at Plant gate.	- Real-time vehicle tracking with alerts (route deviation, breakdown, rash driving, GPS failure, GPS Power off, overspeed etc.)- All cases as per AMNS. - Stack-wise and transporter-wise analytics. - Exception handling - KPI dashboard for all key metrics (TAT, safety, delays, halts, compliance)
I. Mobile Application Features	

- Safety checks, Entry/exit logging, Real-time alerts & Status Tracking, Geo-fence-based monitoring, approval and escalation mgmt.

Integration Scope

- Integration with VAHAN/PARIVAN/ULIP for vehicle document validation. The system must be capable of integration with all statutory bodies as required in this project.
- Integration with i3MS for various touch point (API Integration and Exe integration) needs to be achieved. Vendor must ensure that integration of i3MS is done as per AMNS requirement. Vendor must facilitate for acquiring the permission from Govt. AMNS will submit the application for permission.
- Integration & Automaton with AMNS's SAP (Auto document generation like E-way Bill and Invoice). The System must be integrated and automation (Without human intervention) to push and pull the data from SAP and auto generation of E-way Bill, E-invoice and Delivery Challan.
- Integration with iMHS system (Integrated Material Handling at Dabuna Plant). For material receipt apart from EPOD there may be requirement of integration with existing integrated material handling system.
- Integration with FOIS for Railway siding and wagon dispatch information. The system must be capable of integration with Railway system.
- Integration with various hardware like : RFID, GPS , Boom Barrier, AV System, Camera, Sensors , Controller and various other hardware installed for this purpose.

5.6 Functional Requirement

General System Requirements

- Master Data Management
- Admin Management
- User Management
- Roles & Rights-based access
- Multi-level approval workflow management
- Information access and retrieval management
- Business Process hierarchy management

Application Module Requirements

- Transporter registration
- Transporter profile management
- Transporter authenticity verification through i3ms integration

Vehicle & Driver Registration

- Vehicle registration
- i3MS Integration for truck verification
- Validation of:
 - ✓ Permit
 - ✓ Fitness certificate
 - ✓ Road Tax validity
 - ✓ Laden weight
 - ✓ Unladen weight
 - ✓ PUC Certificate
 - ✓ RC Validity
 - ✓ Insurance
 - ✓ Vehicle Tagging
- FAST-Tag tagging of trucks
- Blacklisted vehicle register
- Driver registration with following information

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

- ✓ Digital/Auto authentication of driver and vehicle documents (e.g., Driving License, Vehicle fitness validity certificate, PUC etc). Pro-active alerts prior expiry of the same.
- ✓ Drivers' details like Name, license number, emergency contact number, Biometrics, photo should be captured in driver registration software.
- ✓ Unique ID for each driver should be provided
- Blacklisted drivers register: Driver Blacklisting with reason / Period
- Dispatch order assignment
- Vehicle allocation/ re-allocation to dispatch order
- Transporter loading slip generation
 - ✓ Vehicle tagging shall be done by transporter in the i3MS and validation through i3MS in application.
 - ✓ Capture vehicle booking code
 - ✓ Tagging of driver to vehicle
 - ✓ Transporter Loading Slip (QR coded) generation in system for material lifting (2 copies).
 - ✓ Transporter Loading Slip to be tagged with the Permit and Dispatch Order
 - ✓ Capture Transporter declaration for authentication and verification of Vehicle and Driver assigned

Stack lifecycle Management

- Admin Management
- Month wise stack demand.
- Creation of Stack.
- Customer mapping with Stack.
- Stack status monitoring.
- Closure of Stack.

Dispatch Order Allocation

- Transporter registration
- Dispatch Order details captured from SAP through integration
- Data captured to include:
 - ✓ DO number
 - ✓ DO validity
 - ✓ Mineral/ Products
 - ✓ DO Quantity
 - ✓ Per ton cost
 - ✓ Transporter Name and code
 - ✓ Transporter per ton cost
- Provision for tagging Dispatch Order to Permit generated in i3MS

Dispatch Planner

- Date wise Dispatch planning facility for logistic manager
- Stacking point wise permit details' arrangement
- Facility to declare Price per ton
- Provision for cancellation/ modification of Dispatch Plan
- Notification to Transporters and Customers for Dispatch Plan view
- TP Cancellation and Auto Reconciliation

Entry Management

- Vehicle allocation/ re-allocation to dispatch order
- Capture vehicle tagging with permit information through i3MS integration.
- Tagging of driver to vehicle
- RFID issuance shall be done
- FASTag based authentication entry into leasehold area

Automated Weighbridge Operation for tare & gross weight

The proposed solution to be deployed at each of the weighbridges for capturing weighment details autonomously without any manual input. All weighbridge operation activities to be controlled and orchestrated by the system. Various triggers and master sequence of activities shall be maintained and triggered through the following steps:

- Capturing of Fastag using Fastag readers installed at the weighbridge
- Operationalization of traffic lights for entire set of weighment activities
- Operationalization of Boom Barrier
- Vehicle positioning through sensors and PA System.
- Capturing of truck top view and front view using IP Cameras
- Capturing of stable weight of mineral being carried or tare weight being measured.
- Capturing of gross weight of mineral carrier post loading
- Population of captured data into i3MS system and generation of e-Transit Pass in real time

Loading Point Monitoring

- RFID tag authenticated entry into loading point/ area
- Vehicle movement monitoring to pre-assigned loading stack post tare weighment
- Time stamped vehicle entry and exit data captured at Loading points or stacking points
- Vehicle Entry permission monitoring based on capacity
- Fasttag and GPS based in-mines vehicle tracking
- Time stamped details captured through fasttag scanning. Escalation and Log Management.

Automation of Documents (TP, E-invoice, E-Way Bill generation)

- Transporter tags the vehicles in i3MS application.
- After successful gross weighment, e-Transit Pass should be automatically generated in i3MS.
- Data to be synced with SAP for Auto invoice and e-way bill generation
- Auto Printing of TP, E-invoice and E-way Bill through integrated SAP system and LR Copy from this system at exit gate.
- Security to Check and verify all documents through mobile app and allow vehicles to exit the mines.

Vehicle Exit Management

- Vehicles to exit the mines after receipt of all required documents at exit gate.
- Exit time stamp to be recorded in system. Escalation and Log Management.

Mineral Receipt at Plant Site

- Validation of driver and vehicle by security personnel against data displayed in Mobile/tab (RFID scan). Other mines receipt through QR scan.
- Vehicle Entry permission monitoring based on capacity. Vehicle front and top to be captured through IP Camera.
- No. plate reading by ANPR Camera/Fall back security to enter vehicle no. Vehicle No. to be matched with TP Scan data for authorizing plant entry
- Entry Time and security clearance login details to be captured in system

Manned WB at Plant

- Vehicle arrives at Gross Weighbridge, other mines → TP scanning. AM/NS Mines digital TP available in system. Gross weighment captured.
- Under tolerance digital unloading Slip generated and vehicle move towards unloading point. Beyond tolerance AM/NS to approved (Escalation Management).
- Capturing truck top and front view using IP Camera
- Truck approached to Unloading area → Unloading supervisor notified of vehicle arrival through mobile App, Unloading done, entry and exit time recorded with supervisor login details.
- Vehicle moves to Tare WB and TW captured and recorded in system with time and login details.
- Reconciliation of captured data into i3MS system through digital Platform. GRN integration with SAP.
- Vehicles proceed for exit gate. Time and login recorded.

Point of Installations

Sl.No.	Location	Entry	Exit	Parking	WB (Tare /Gross)	Loading/ Unloading Point	Server Room
1	Sagasahi Mines	2	2	2	6	3	1
2	Thakurani Mines	1	1	1	6	2	1

Interactive dashboard

The proposed system should have interactive and integrated analytics dashboard which will be used by specific set of users (Management, Control Tower, Supervisor, Logistic and others) to view the activities conducted at various mines and Plant site. The dashboard shall have a dynamic interface enabling the user to get updated & instantaneous information which can be accessed anywhere using various browsers. The proposed dashboard will be of following type.

Centralized Dashboard: This will be accessed by the higher authority and will be able to provide information accumulating all mines/Plant operation. This can be accessed through mobile also.

Mines/Plant specific Dashboard: This will be accessed by the respective mining/Plant officials and will be able to provide information pertaining to respective mines only.

Many other analytics dashboard to be developed/configured as per the requirement by business users.

In Mines Logistics Report

- In-mines Turn Around Time report
- Turnaround time at mines across locations, transporters, vehicle numbers etc.
- Daily dispatch report
- System down-time report
- Exceptions report
- Safety compliance report
- Overall outbound transportation turnaround time
- Cases of diversion, drop shipments etc.
- Latest dispatch plans across mines at individual transporter/ vehicle level
- No of trips per truck per month (Transporter wise and truck wise).
- Many other reports to be develop and configure as per business requirement.

MIS & reporting

- The proposed solution should have followed type of reports
- Dispatch report (Date-wise/ Mines-wise / Plant wise/ Vehicle-wise/ Permit-wise/ Source & Destination-wise) etc.
- In-mines, In-Plant and during the way Turnaround Time (TAT) report and overall, TAT. No of trucks in Que at outside mines for loading
- Lead time report at different in-mine and Plant touchpoints (weighbridge, entry, exit, Loading, Unloading etc.)
- Transporter-wise reports, Transporter performance report
- Daily dispatch/receipt/not receipt/breakdown report (Inside and outside Mines)
- Actual dispatch/receipt details across mines at individual transporter/ vehicle level

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

- Root deviation/un-authorized stoppage/ GPS not working/Harsh driving/ETA-delay etc. (As per transporter/driver /Source & destination/
- Many other MIS reports to be developed/configured as per business requirement.
- Email Alert Management requires for cases Not on DO Ageing, LC Expiry for on DO , Sales Order validity expiry.
- Security checks at various gates (System Functionality / RFID Based auto check functionality)
- Vehicle change-in case of enroute issue during inter-carting movement

Transporter Analytics

- Schedule vs. actual vehicle availability
- Transporter Performance in-transit
- Route-wise transporter performance
- Dispatch Order State
- Tonnage Lifted State
- Daily Dispatch Volume
- Status of indent
- Placement compliance by vendors
- Overall placement compliance at various Mines
- Many other to be develop/Configure as per business requirement.

Stack Monitoring

- Stack wise mineral details
- Customer wise stack position
- Daily stack balance monitoring
- May other as required by business

Mobile application

The solution should comprise of a mobile application on Android / IOS platform to perform the following functions:

Entry & Exit Management

Validation of driver and vehicle by security personnel against data displayed in the mobile application.

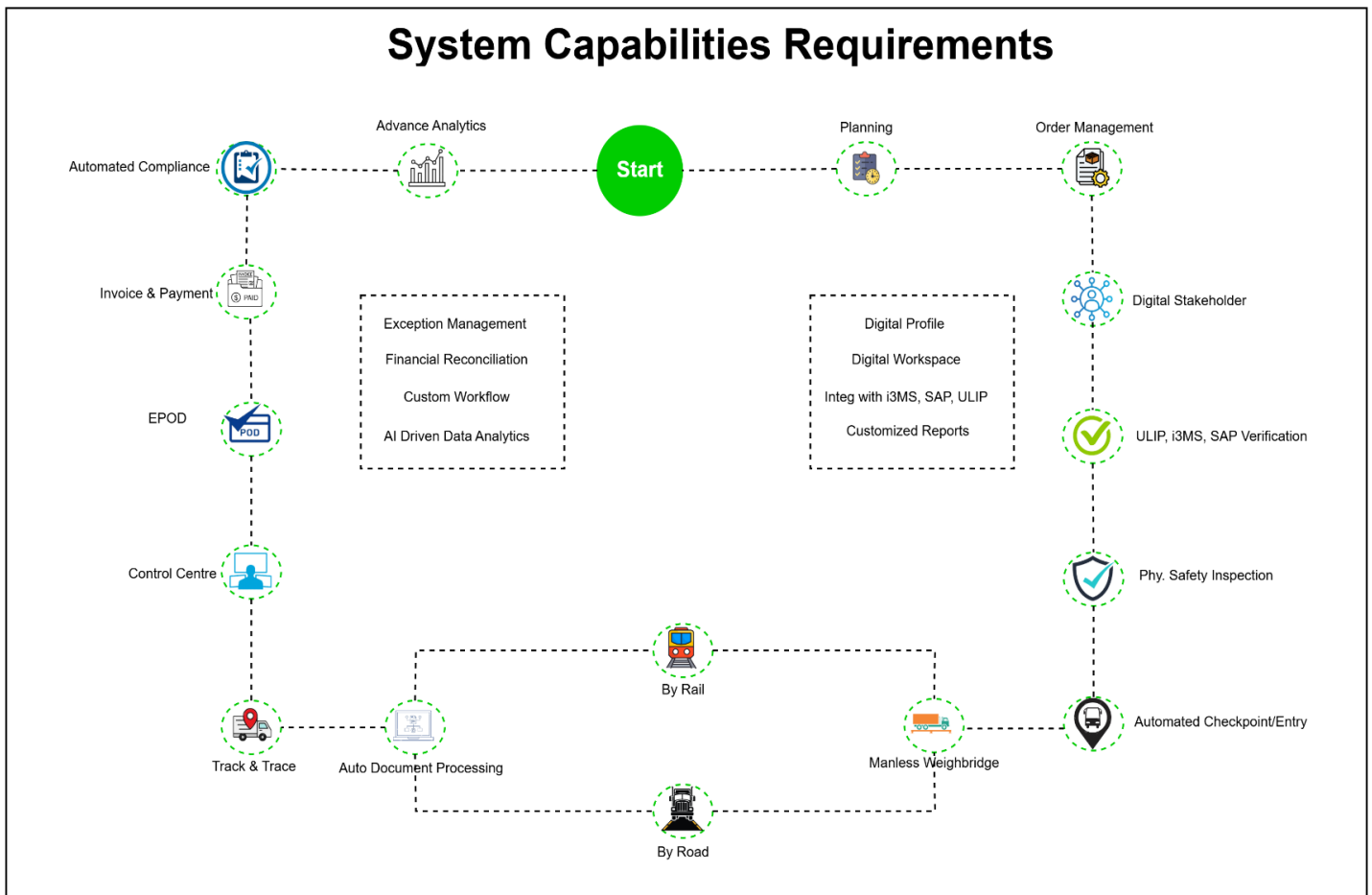
Loading Point Monitoring

- ✓ Vehicle movement report to pre-assigned loading point post tare weighment
- ✓ Timestamped vehicle entry data captured at Loading points or stacking points
- ✓ Vehicle Entry permission monitoring based on capacity
- ✓ Timestamped details capturing through hand-held device

Mobile Reports

- ✓ In-mines activity report
- ✓ Trip-wise report
- ✓ Entry and Exit Report
- ✓ Transporter Analysis and Performance evaluation
- ✓ Approval for truck requisition etc.
- ✓ Many other reports to be configured as per business requirement.

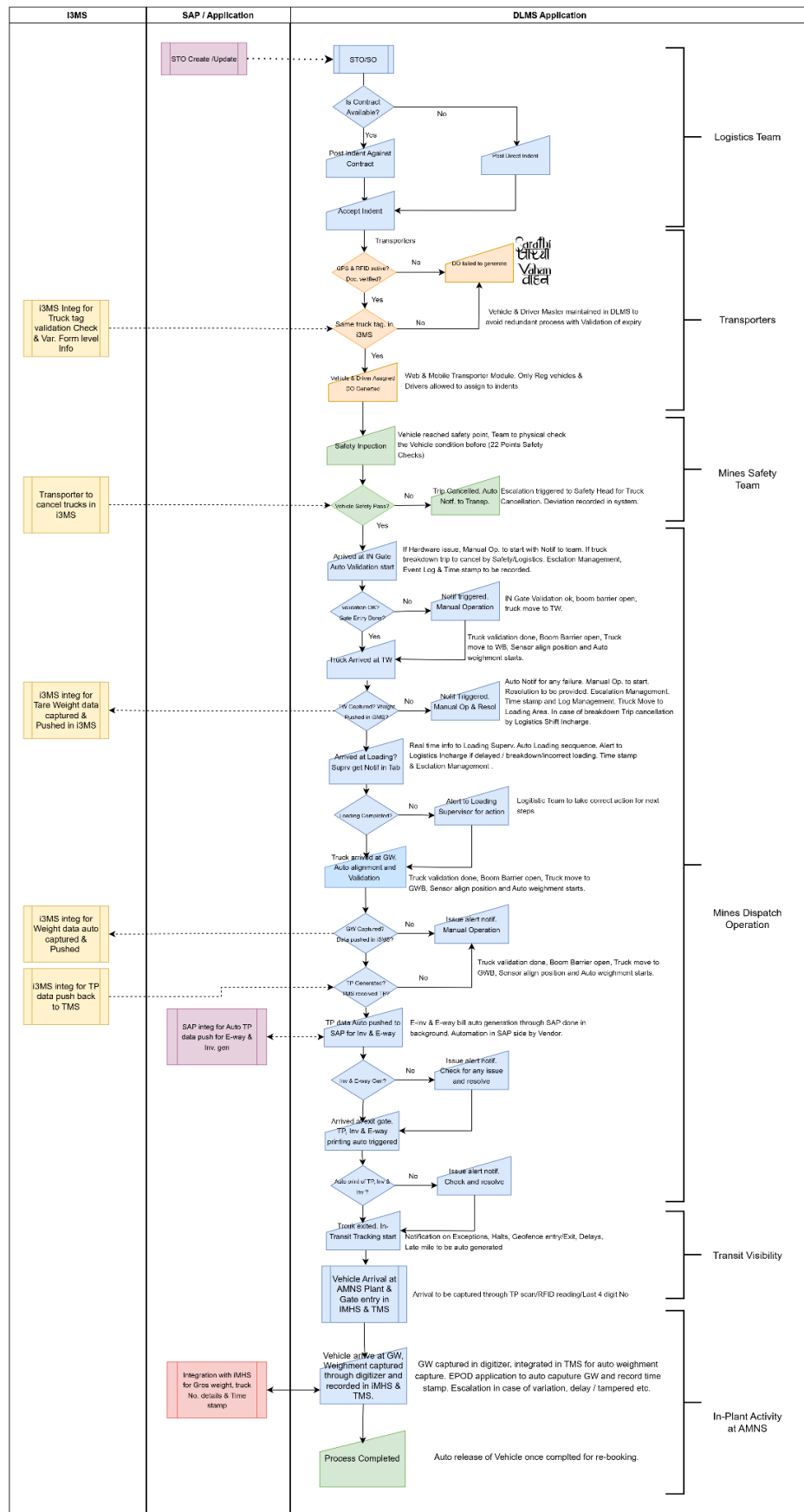
5.7 Required System Capabilities (To be) :



Project Name: Logistics Automation and Digitization – Phase-2	
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

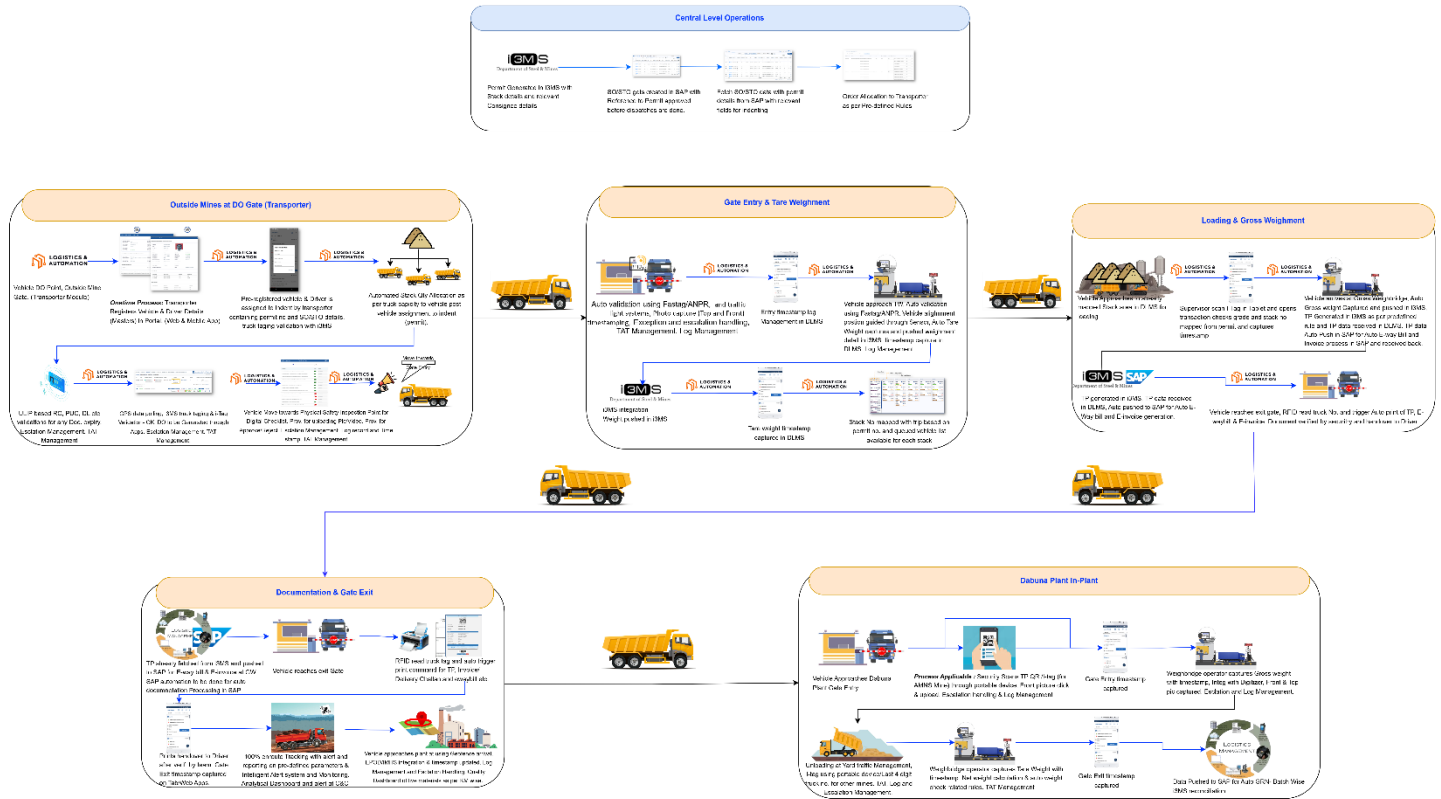
Project Name: Logistics Automation and Digitization – Phase-2	
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

5.8 Mines Detailed Process flow with integration requirement.



5.9 TO-BE process flow – Outbound logistics (Inside plant process) with Trace & Track implementation

Step by Step Solution (To be Process)



Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

5.10 LOGISTICS VENDOR PERFORMANCE MANAGEMENT & AUTOMATION

1. Transporter performance data management –

- System integration of data sources to capture monthly dispatch data, truck details (registration no., truck type), DLO data, timestamps during loading, transit and unloading, GPS data, fastag and Dabuna quantity (Mtp) & value.
- Computation of transporter-wise performance metrics per month.
- Generate alerts for non-performance and non-compliance with Tender terms.

2. Liquidated Damages (LD) implementation-

- Imposition of LD for non-performance of transporter.
- Reporting and analysis of instances of default and liquidated damages per transporter.
- Option for LD waiver request, and subsequent approval from concerned authorities.

3. Vendor compliance tracking-

- Track vendor fleet strength and deployment of fleet for AM/NS.
- Track vendor IBA approval through contract tenure.
- Track validity of Bank Guarantee from award of contract to 3 months after the end of contract
- Track transporter's compliance with GST or any other Indirect Tax laws & regulations
- Track feedback for each transporter from AM/NS India

4. Vendor MIS reporting

- Capture information from transporters such as expected delay, ETA and issues faced per consignment

5.11 Compliance monitoring and tracking:

System should cover all compliance monitoring and tracking of KPIs/KRAs of the business/function.

5.12 Compliance monitoring and tracking:

System should cover all compliance monitoring and tracking of KPIs/KRAs of the business/function.

5.13 Data protection and cyber security compliance

The services proposed by the Bidder must be in adherence to the Applicable Laws which are applicable without limitation to the provision of the services, standards to be maintained for the performance and the safeguards to be complied with for the protection of data. The Bidder & the services offered under the Proposal must be compliant with the AM/NS India's Data Protection Policy attached below-



Data Protection
policy.pdf

5.14 General requirement:

1. Solution should be scalable (without vendor support) to further expansion in location, plant, product, distribution/sales channel, if any. AMNS is operating at 7.2MTPA level currently. Short/medium term plan is to ramp up this volume to 14MTPA in next 3-5 years. There will be volume addition in future as part of long-term expansion plan.
2. Planning horizon will be 6-12 months with weekly bucket. Frequency – Monthly/Weekly/any time as per business need.
3. Granularity should be at a reasonable level where forecasting can be done.
4. System should be able to aggregate/disaggregate forecast at a required level
5. Solution platform/engine should be common for all modules like logistics planning, operations, commercial, analytics, finance for Pan India level Mining Operation.
6. A provision is to be provided for Management input in logistics plan and facility to do variance analysis with respect to original logistics plan.
7. Bidder to clearly identify and specify the hardware & software requirements for the project. The Requester wishes to keep the project on a cloud platform. Bidder to indicate the expected peak & average load on the servers. Bidder to estimate and specify expected system running time for each module.
8. There should be common master data management for all modules of the system

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

6 PROJECT CONSIDERATIONS

6.1 General Consideration

1. The Bidder will assign a 24x7 SPOC who has good understanding of the system and mining industry supply logistics processes.
2. The Bidder shall deploy 24*7 onsite team support for pre & post implementation.
3. Key stakeholders of the Bidder including management will be available on a timely basis to participate in completion of the Business Blueprint and Architecture Blueprint and to resolve any issues.
4. During preparation of Blueprint documents, the Bidder will be ensuring the availability of its best professional with relevant expertise who will take total ownership of solution during the entire implementation tenure
5. The Bidder's personnel and consultants will align timelines and provide extended support whenever required to achieve the target dates of deliverables.
6. The Requester's calendar will be followed.
7. The Requester shall have the option to ask for all discussions to happen at on-site or off-site. In case the Vendor wants to have off-site, it should be explicitly mentioned, and clearance should be taken from the Requester beforehand.
8. The Bidder will provide documented process for day-to-day support post the hyper-care support tenure. The structure of the document will be provided by The Requester's project manager.
9. Wherever the Requester's related task or activity is mentioned, it will be executed by The Requester's or its External authorized person/agency.
10. Implementation of the project, and subsequent support will be in English language only.
11. The Bidder needs to ensure competent, efficient and effective provision of services to minimize time and effort and improve on the KPIs identified by the Requester. The Bidder shall ensure that all the personnel, third party consultants, system integrator and representatives ('Personnel') deployed for the project will be sufficiently qualified, skilled and competent with prior experience and knowledge in rendering/ performing similar project. The Requester may at its option have a right to request a substitution in the team, if the performance by any Personnel is found unsatisfactory. The Bidder shall extend reasonable support/ assistance in complying with such request without any objection. The Requester and SAP HANA migration SI team will be available during the System Architecture & Design workshop and Final Solution Validation.
12. Any escalation from the Requester on the project will be responded to by Vendor as per the following
 - Sr. Leadership response time: within one working days
 - Project Manager: 8 hours on working days
 - Team Lead & team members, response time: 2 hours on a working day. 4 hours on non-working days.

6.2 Technical Considerations

1. Validating the adopted architecture for minimum costs and maximum security would be the Vendor responsibility.
2. The Vendor's technical team will have the technical skills necessary to participate in the IT Infrastructure Planning and carrying out their assigned implementation tasks.

6.3 Activity Management Tools & Other Considerations

1. The Bidder should use mutually agreed upon tools for project / activity management.
2. The Vendor will provide a flow diagram showing the overall process flow of the change management process, problem management process, and service request management process.
3. The Vendor will provide an escalation matrix with emails and contact details.

7 CRITICAL SUCCESS FACTORS

1. Visible participation of the stakeholders from both sides.
2. Adequate stakeholder involvement in the program governance structure
3. Involve highly skilled technical consultants
4. Automation of routine support tasks
5. Progressive achievement of the KPIs.
6. Clear definition of Project deliverables and adherence to Project Timelines, Scope, and Work Breakdown Structures, all agreed upon and frozen in fixed and variable time buckets.
7. Vendor agrees to have proper senior management representation in a Steering Committee.
8. Any Scope-Creep and scope changes through the project duration, if any, would be managed through the scope change request process as detailed in the Agreement, and all such mutual agreements with business should be documented and get the sign-off from the Project manager and Steering Committee.
9. Collaboration and cooperation with other contractors, service providers, third party consultants deployed by the Requester at site, to ensure continuous and smooth implementation of the Project.

8 PROJECT APPROACH, TIMELINES & RESOURCES

8.1 Implementation Approach

- The project shall follow a design, build and implement, where the Bidder shall help design the business solution basis discussion with various stakeholders, build the corresponding system to the best-in-class capability, deploy the same onto production systems as provided by AM/NS India.
- Each of the modules as documented in Section 5 (Scope of Work), shall be assumed as a separate module. The Requester has the right to request for specific modules to be provided or prioritized by the Bidder. The final solution could be completely provided by one Bidder, or it may be a combination of modules from multiple vendors, managed and provided to the Requester by the Bidder. In such cases where modules are provided by multiple vendors, the Bidder shall be responsible for coordination and will be the single point of contact for the Requester for addressing any concerns or resolution of issues. The Bidder should explicitly mention specific modules, of the Bidder's solution, along with the interdependencies of each module on others.
- The system can be based on a private or public cloud environment. The Bidder should clearly define the required hardware details while mentioning the performance benchmark of the system during the detailing of each module.

8.2 Go-Live Support / Run Phase

- SLA matrix for issue resolution.
- 24*7 onsite support till system stabilization (hyper care period)
- Optimize performance of the system based on usage during Hyper Care Support.
- Close all observations reported observations in the Pre-go live and Post Go-live check
- Resolve all tickets raised by The Requester.

Go-live shall be subject to express approval of the Requester. The purpose of the go-live support phase is to provide support for the solution during the period immediately following production cutover, as designated in the Agreement. Exceptional items such as additional production support, exceptional business monitoring processes, and extraordinary technical support are planned and executed in this phase. At the end of the designated period, Bidder is expected to continue providing support in line with the defined SLA in this scope.

In addition, the disposition of all issues encountered in the transition to the new solution is to be determined and

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

documented. Vendor's issue tracking tool is to be integrated with the Requester's tool for reporting and tracking issues.

Processes are to be established to enable ongoing knowledge support, including setting up go-live training sessions and ensuring that training materials are kept up to date.

When these deliverables are complete, sign-off occurs to demonstrate phase completion.

8.3 Implementation Timelines

The Bidder will propose timelines for implementation as per the scope defined.

The implementation should be carried out using agile methodology. The Bidder will develop a detailed activity- wise project plan for the first 10-sprints / top-3 modules, and a milestones-based project plan for the remaining sprints/modules, during the project preparation phase. The BIDDER also needs to share the methodology that would be adopted for detailed planning of the parts not covered in the initial detailed schedule. However, as part of the submission of the Proposal against this RFP, a high-level project plan with key activity and go-live dates needs to be shared for evaluation.

9 PROJECT ORGANIZATION STRUCTURE

The project organization is the people structure that supports the implementation. The Bidder needs to clearly articulate the project organization structure in the technical proposal being submitted.

9.1 The different components of the project organization are as provided below: [Project Steering Committee](#)

The Requester	The Bidder
Heads of Key Business Functions, Head of IT & CIO Program Manager Business Project Manager IT Project Manager Special Invitees (on need basis) Business and IT functional Lead	Executive Sponsor Program Manager Project Manager Dedicated SPOC Special Invitees (On a need basis) Lead Consultants

9.2 Project Management Office (PMO)

The Requester	The Bidder	Email / Phone
Program Manager Business Project Manager IT Project Manager	Program Manager Project Manager Dedicated SPOC Integration Manager	

9.3 Technical Project Team

The Requester	The Bidder
Team Leader – Technical Team Members – IT Team Members – Logistics Team Members – Others	Migration and Deployment Lead Consultant Migration and Deployment Consultants Network & System Administration Consultants Expert Consultants – Supply Chain Management Expert Consultants – Sales Expert Consultants – Costing & performance Management, logistics, & distribution Solution, Technology, and integration architects

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

9.4 The Requester’s IT Team Deployment Plan

The Bidder to spell out clearly the requirement of the project team from the Requester’s side, which includes their involvement in any type of activity and no. of hours/days required.

9.5 Team from the Vendor

The shift roster for all Vendor teams should be published on periodically with contact number and email id. Vendor shall submit profiles of consultants who will be deployed for this Project. The Requester shall interview each consultant and only on written approval by the Requester, the consultant shall be added as a part of project team by the Vendor. Bidder to submit the complete team structure along with expected man hours of engagement as part of the Proposal. Rate card for any extra effort required for resolving change requests beyond current Project scope shall also be provided.

Project Name: Logistics Automation and Digitization – Phase-2	
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

10 OPERATING PRINCIPLES

Project Management: The Vendor will work with the Requester for the project delivery under the current scope of work. The Project will be governed by a Steering Committee as provided under Section 9.1 of this RFP.

Working days in a week: The Vendor shall be required to follow the Requester’s Calendar to ensure no interruption in the operations of the Requester.

Quality Review: The Vendor would ensure quality and timely completion of the tasks assigned to its consulting resources. The Requester shall be entitled to conduct quality review during all phases of the project. The Bidder shall coordinate and provide necessary access to its systems and records quality review by the Requester.

Project Scope: In the interest of timely implementation of the Project within planned costs, it is important to manage and contain the project scope within desired limits and areas only. The high-level requirements as provided in Section 5 (Scope of Work) of this RFP are indicative and the final scope and deliverable of this project will be the mutually agreed upon during the detailed Blue Print Phase and documented as a part of signed off Blueprint, and the Vendor shall be fully governed by this Blue Print (which shall form an integral part of the Agreement) as well as the terms of this RFP. The reason for dropping or adding a scope item has to be routed through PMO and Steering committee.

Resource Deployment: Resource deployment has to be done keeping in mind the timelines to be achieved under different phases of the project and other integration points. In the interest of quality, continuity of resources on the project is of utmost importance. In case any of the resources have to be offloaded, a minimum of 1-month prior permission from the Requester’s Project Manager is required in writing and if this is a regular occurrence, an adequate amount of LD will be imposed on Vendor.

The Project Managers of the Requester and Vendor will come together to review the resource requirement periodically and take decisions of reducing/increasing the resources deployed. This will help to further optimize the resource deployment. A calendar for such review will be worked out and communicated to all concerned to facilitate participation on time.

System Administration: The Vendor will identify and provide full-time system administration and system support to the project team after go-live. Necessary hands-on training for the system administration team will be planned in the project. Vendor will provide expert advice on technology requirements on a need-basis during the course of the project.

Documentation Scope: Provide end-to-end documentation of the complete project deliverable, and the SOPs for the day-to-day maintenance activities.

Post-Go-Live Support: The Vendor will provide 24*7 on-site Post-Go-Live Support for the duration indicated in Project Timelines.

Project Communication: While the Requester shall drive the communication, the Vendor will assist in its formulation and on a need basis, help conduct senior management briefings, provide content for newsletters, etc.

Change Management and Process Improvement: The Vendor team will help identify “Process” areas needing the attention of change management and through the modes of communication and training, address the Package enabled change management to process owners and end-users.

Continuity of services: The Vendor has to ensure compliance with all Applicable Laws, including any restrictions provided under the Applicable Laws and as amended from time to time to ensure continuity of the Services.

OTHER INFORMATION REQUIRED IN THE TECHNO-COMMERCIAL PROPOSAL

10.1 Bidder profile

1. Local and/or Global Presence
2. Company Turnover
3. Year of Establishment
4. Employee count Bidder contact information
5. Details of all the Key Managerial Personnel (KMP) and Directors
6. Details of Affiliates of the Bidder, jurisdictions in which they operate and the nature of their business operations

10.2 Bidder contact information

1. Specify the name, position, address, and other contact details (e-mail, office telephone, cellular telephone) of the person within their organization responsible for leading the bid process and to whom all correspondence should be directed.
2. Bidders should specify the name and position of the person who will be authorized to conduct the contract negotiations and sign any resulting contract.
3. The Bidder shall also provide specific authorization in favour of all such above designated persons to represent and act on behalf of the Bidder for the purposes of submission of the Proposal and subsequent implementation of the Project.

10.3 Risk Management & Governance

1. What are the main project risks anticipated by the Bidder based on past experiences and what are the proposed mitigation actions?
2. Dependency on key individuals, and lack of familiarity with the application domain, or technology, should be detailed in a risk matrix, along with the risk treatment strategy
3. Proposed governance framework to be provided in technical proposal Other Information required in the technical proposal.

10.4 Other Information required in technical proposal

1. A brief company overview and summary of their ability to deliver the project.
2. List of deliverables at each stage of the project
3. Project schedule with milestones
4. Risks and mitigation plan
5. RACI matrix of the entire project tasks.
6. Training methodology
7. Resource deployment plan with complete org structure & resource count–
 - a. Bidder (onsite + offsite bifurcation needed on monthly basis)
 - b. The Requester's IT Team (onsite + offsite bifurcation needed on monthly basis)
8. Implementation, change management, and Support Escalation matrix
9. Project Management/Governance and Communication methodology
10. Bidder's Internal Quality assurance methodology
11. Knowledge Transfer Process / Training methodology
12. List of documents that will be delivered once the requester infrastructure provisioning is completed
13. Response to pre-qualification criteria mentioned in Annexure C: Pre-qualification / Eligibility Criteria
14. Other details that are required are mentioned in the table below:

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

Sl. No.	information Required	Class	Response from bidder	Support Documents
1.	Experience of Vendor in offering Logistic & warehouse management solutions	1-3 Years 4-5 Years 5+ Years	At least 1 assignment in the Mining industry in India or Globally	Project Work order / Completion Certificates from the client stating Project Start date and Project End date
2.	Size of the solution implemented by Vendor in offering Logistic & warehouse management solutions in India or globally.	Minimum INR 1 CR	At least 1 assignment in the steel or Mining industry in India or Globally	Overall Project Work order with overall cost highlighted.

11 GUIDELINES FOR COMMERCIAL PROPOSAL

The Bidders are required to submit a commercial Proposal. The Bidder is to provide detailed cost breakup (including all out-of-pocket expenses) for each activity specified in this RFP, together with efforts estimation for each, as per the different modules as specified in Section 5 (Scope of work). The Bidder will be subject to all the terms and conditions mentioned in this RFP, which will be elaborated and formalized in the Agreement. The bidder shall ensure that the implementation partner adheres to all such terms, where applicable, including providing sufficient warranties, executing necessary documents, and payment of any penalties and/or indemnities.

11.1 Warranties

The Bidder represents and warrants that: (a) the Services provided shall be free from any errors, omissions and deficiencies and be in line with the best industry standards and as per the requirement and scope agreed for the Project; (b) these Services shall be compliant with the Applicable Laws; (c) the Bidder has a good right, title and interest to provide all Services as per the Agreement and the use of such Services by the Requester shall not be in infringement of third-party intellectual property rights.

11.2 Liabilities

The vendor shall at all be required to demonstrate and ensure reasonable care and competence in the implementation of the project and will comply with the terms and conditions as laid down for the project and where no such conditions are prescribed, act as per the best industry standards. The vendor's liabilities in relation to gross negligence, wilful default, non-compliance with Applicable Laws or non-maintenance of relevant permit/ licenses/ authorization, infringement of intellectual property rights, any third party claims against the Requester, breach of confidentiality obligations, and the breach of data protection obligations shall remain uncapped.

11.3 Stamp duty

The Vendor shall be liable to pay all applicable and payable stamp duty in respect of execution, delivery and performance of the Agreement and any other instruments as may be required for the provision of the Services under the Agreement.

11.4 Invoicing

The selected bidder shall submit to the Requester invoices after the services have been provided. Such invoices shall be subject to certification by Requester against the works completed and any payment shall be released subject to any

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

deduction of the applicable liquidated damages.

11.5 Price protection

The invoices should be generated based on the rates agreed upon in the Agreement. The agreed upon rates should not be increased during the term of the Agreement. If the prevailing rates are lower than the Agreement rates for two consecutive quarters, the lower rates should be adopted by the Parties in writing.

11.6 Payment terms

The Bidders are required to provide details on the milestone-based payment term structure. Following options should be provided:

1. No upfront payment – all payments after month-wise consumption
2. Partial upfront payment – An upfront payment that attracts a better discount in the TCO, coupled with monthly payments post the month’s usage

All payment terms shall have 2 components

1. Fixed component – connected with fulfillment of various project milestones
2. Variable component – connected with the achievement of business KPIs.

11.7 Liquidated Damages

Liquidated Damages (LD) shall apply for any delay in meeting the project timelines or for any shortfall in the identified performance parameters as may be specified in the Agreement. The maximum Liquidated Damages leviable on the Bidder shall not exceed an aggregate of ____% of the contract value.

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

12 LEGAL TERMS AND CONDITIONS.

The following terms and conditions shall govern this RFP as well as the Agreement that may be subsequently entered between the Requester and the successful Bidder. The Requester reserves the right to vary/ modify any terms and conditions provided under this RFP at the time of execution of the Agreement as it may deem fit.

12.1 Performance Guarantee

- I. Within fifteen (15) working days from the date of issuance of Letter of Intent by The Requester, the bidder shall at his own expense submit unconditional and irrevocable Performance Bank Guarantee (PBG) an amount equivalent to 10% of contract value to The Requester.
- II. The PBG shall be from a Scheduled Commercial Bank in the format prescribed in Annexure F: Performance Bank Guarantee, payable on demand, for the due performance and fulfilment of the Agreement by the bidder.
- III. All charges whatsoever such as premium; commission etc. with respect to the PBG shall be borne by the bidder.
- IV. The PBG shall be valid only up to the completion of the period of 'Go- Live' + 60 days for the project. The PBG may be discharged/returned by The Requester upon being satisfied that there has been due performance of the obligations of the bidder under the Agreement. However, no interest shall be payable on the PBG.
- V. In case the project is extended beyond the agreement timeline for project completion, the PBG shall be accordingly extended by the bidder till the extended period, without any objection.
- VI. In the event of the bidder being unable to perform and render services as per the Agreement for whatever reason, the Requester shall be entitled to invoke the PBG. This right of invocation will be in addition to any other rights the Requester may have in cases of breach/ default/ non-performance by the Bidder under the Agreement.

12.2 Intellectual Property

The Bidder represents and warrants that it has the necessary right, interest and title (as applicable) to the Services that will be provided to the Requester under the Agreement. The Bidder further represents that it has all the relevant right and authority to provide the Requester a valid license for use of the solution/ software during the tenure of the Agreement. The Bidder shall be solely responsible to indemnify the Requester against any claims of infringement of intellectual property rights from any third party or any service provider of the Bidder.

The Bidder shall provide a license for the software and other intellectual property that is part of the offering, whether such intellectual property is proprietary or licensed to the Vendor. To the extent any Requester's intellectual property, Requester's property/material or Requester's data is required for the provision of services by the Vendor, the vendor shall disclose any such requirement as a part of the Proposal, which may then be considered by the Requester. The Parties may agree upon specific terms for the ownership of Requester-specific customization that may be required for the purposes of the Agreement, including any upgradation/ development in the services undertaken during the Agreement by making use of the Requester's data or otherwise.

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

12.3 Accident/Safety

In the event of any accident during the term of the Agreement, the Vendor shall be solely liable and all consequences shall be borne by the Vendor. Even in the instance the Vendor's personnel are present on the premises of the Requester for the purposes of the provision of the services contemplated under this Agreement, the Vendor shall remain responsible for the actions of its personnel, and for any accidents that these individuals may suffer.

12.4 Confidentiality

Neither Party will share/ disclose the confidential information of the other Party received pursuant to this RFP or the Agreement. The Parties shall be responsible for ensuring confidentiality and to limit the disclosure of confidential information on a strict need to know basis. Any disclosure to any third party shall be subject to prior consent of the party owning such confidential information. The obligations of confidentiality shall also survive the termination of the Agreement. The Requester shall, in any event, be permitted to disclose such confidential information to its affiliates and prospective investors.

12.5 Governing Law and Jurisdiction

The Agreement shall be governed by the laws of India and subject to the dispute resolution mechanism below, the courts in Mumbai shall have the exclusive jurisdiction to settle any dispute arising out of or in connection with it. All disputes between the Parties arising out of this Contract shall be settled in accordance with the arbitration rules of the Mumbai Centre for International Arbitration ("MCIA Rules") for the time being in force, which rules are deemed to be incorporated by reference in this clause.

The arbitration shall be conducted in English, and the place and seat of the arbitration shall be Mumbai, Maharashtra, India. The arbitration shall be conducted by an arbitration tribunal consisting of three (3) arbitrators. Each Party shall appoint one (1) arbitrator who shall in turn, appoint a third arbitrator ("Tribunal").

Notwithstanding the reference of any dispute to be resolved through arbitration pursuant to this Clause, the Parties shall continue to perform their respective obligations under the Contract, unless they otherwise agree.

12.6 Change in law

In case of any change in Applicable law, the parties shall mutually discuss in good faith to reach an agreement on an economical and commercially prudent method for complying with such change. In case of any such change in law having a material adverse impact on the performance under the Agreement and the Parties not being able to reach an agreement within a specified time period as may be mutually agreed, then the Requester shall have a right to terminate the Agreement by written notice to the Vendor.

12.7 Term, Termination, and Suspension

The vendor shall provide the services as described in this RFP and as agreed under the Agreement to the Requester starting from the effective date as agreed in the Agreement and shall continue to do so in accordance with the terms of the Agreement.

12.7.1 Termination for Convenience

The Requester shall have a right under the Agreement to terminate the Agreement for convenience upon providing prior notice to the Vendor.

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

12.7.2 Termination for Cause

The Requester shall be entitled to terminate the Agreement in the following circumstances:

- I. where the right to terminate has been specified elsewhere in the Agreement.
- II. for an event of default, which is not cured by the Vendor despite notice,
- III. non-compliance with any of the conditions of the Agreement,
- IV. non-compliance of any Applicable Laws, including any applicable sanctions imposed by the UN, US, UK, EU or India
- V. in case of a Force Majeure event, if the performance under the Agreement could not be resumed within a stipulated time period as mentioned in the Agreement.
- VI. insolvency of the Vendor or the inability of the Vendor to repay debts or appointment of an administrator/ liquidator to manage the assets of the Vendor, or
- VII. the initiation of civil or criminal proceedings against the Vendor or any of its employees, which shall affect the provision of services contemplated under the Agreement

Upon notice of termination, the Vendor will be required to initiate exit management to enable smooth transition of the services and follow requirements in relation to the return of data as required or otherwise prescribed in the Agreement. It is clarified for the avoidance of doubt that the termination of the Agreement shall not limit or restrict the exercise of any rights or remedies which the Requester may have against the Vendor under the Agreement, applicable law, or in equity.

12.7.3 Right to suspend the Agreement:

The Requester shall have the right at any time to suspend the Agreement, in whole or in part, for such time as may be necessary in the opinion of the Requester. In such an event, where the Vendor is not in default, the Requester may in its discretion grant such extension of time for the completion of the project, which in its opinion, is proper and/ or other relief as it may deem necessary as per the terms of the Agreement.

12.8 Force Majeure

- (a) The term “Force Majeure” shall mean an event or circumstance which is beyond the reasonable control of the affected Party (“Affected Party”), and which (a) is on the critical path of timely completion of the project, in whole or in part or of the identified milestones, (b) the Affected Party could not reasonably have provided against (not including via financial means) or foreseen before entering into the Agreement despite exercising reasonable due diligence, (c) having arisen, such Affected Party could not reasonably have avoided or overcome, (d) is not attributable to the fault or negligence of the Affected Party, its personnel, third-party service providers or sub-contractors.
- (b) Either Party shall not be liable for any failure to perform or delay in the performance of its obligations under this Agreement, and will not be in breach of this Agreement, if and to the extent that its performance is prevented, impeded or delayed by a Force Majeure event. However the Affected Party shall be responsible to undertake commercially reasonable efforts to mitigate the effects of the Force Majeure event.
- (c) Upon the occurrence of a Force Majeure event, the Affected Party shall notify the other Party of such occurrence, describing the Force Majeure event and the obligations the performance of which have been prevented, hindered or delayed thereby.
- (d) If a Force Majeure event occurs and its effect continues for a continuous period of 90 days, the Buyer may give to the Contractor, a notice of termination, which shall take effect 15 days after the giving of the notice, without any cost or liability to the Buyer on account of such termination.

12.9 Indemnity

General Indemnity

The Bidder shall fully indemnify, hold harmless and defend the Requester, its affiliates, personnel and the directors,

agents and employees of the Requester (collectively, the “Indemnified Parties”) from and against any and all claims, losses, expenses, costs including reasonable legal costs, (collectively the “Damages”), including by way of any claims from third parties, including in respect of death or bodily injury or in respect to loss or damage to any property which arises out of or in consequence of the performance of the Contractor’s Scope or any obligation under the Contract.

Specific Indemnity

The Bidder, shall in addition to any indemnity obligations contained elsewhere in the Agreement, shall indemnify, defend and hold harmless the Indemnified Parties from and against any claim, demand, liability, action, proceedings, cost or expense in favour of any third party with respect to:

- a. failure of the Bidder, any of its third-party service providers, sub-contractors or any of their respective sub-contractors to comply with the terms of the Agreement;
- b. its failure to make payments of taxes pursuant to the Agreement irrespective of whether they are reimbursable or to be compensated herein;
- c. any claims or suits arising out of infringement of any Intellectual Property;
- d. material breach by the Bidder of any provision of the Contract including death or bodily injury to any person, any wilful default or gross negligence; or liability arising out of breach, default or non-compliance of any Applicable Laws.

12.10 Compliances

The Bidder shall comply with:

12.10.1 Compliance with Applicable Laws

- All the Applicable Laws, including labour, occupational health and safety Hazards, environment, data protection and privacy, anti-bribery, anti-corruption, anti-money laundering and such other Applicable Laws as amended from time to time.

12.10.2 Compliance with Buyer’s Policies

- All policies of the Buyer as available on the Buyer’s site <https://www.amns.in/policies> (“Policies”) and as updated from time to time, including the Policies in connection with anti-corruption practices, anti-bribery practices and anti-money-laundering.

12.10.3 Compliance with Trade and Export Control Laws

- All applicable sanctions, restrictions, export controls, trade embargoes or bans in connection with the end-user of the Works and/or Equipment and as applicable to the jurisdictions where the Buyer and its affiliates have its businesses/ operations.

The Bidder shall also specifically comply with the obligations laid down under the (Indian) Information Technology Act, 2000 and the (Indian) Information Technology (Reasonable Security Practices and Procedures and Sensitive Personal Data or Information) Rules, 2011 and any other law for data protection in India, in relation to information shared with it

The Requester shall have a right to audit the performance and operations of the Bidder for the purposes of verifying its compliances as per this Clause. The Bidder shall be required to reasonably co-operate with the Requester and provide all necessary assistance.

12.11 Priority of Documents

The Agreement, and all other documents forming part of or referred to in the Agreement shall be mutually agreed between the Parties. The priority of the Agreement and other documents forming part hereof or referred to herein shall, in the event of any conflict between them, be considered in the following order of priority:

- (a) the Agreement and its Annexures/ Schedules;
- (b) Technical Specifications/ Blue Print of the services;
- (c) The general terms and conditions contained in the RFP; and

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

(d) Bidder’s technical Proposal.

12.12 Other provisions

The clauses contained in this Section 12 are indicative and shall not be construed as exhaustive. These terms and conditions shall be read and interpreted as per the Agreement upon execution.

Project Name: Logistics Automation and Digitization – Phase-2	
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

ANNEXURE A: CYBER SECURITY POLICY FROM THE REQUESTER

The Requester’s cybersecurity policy will be shared upon finalization of the Agreement. The Bidder along with its system integrator should adhere to all cybersecurity requirements as might be required by the Requester from time to time. The final requirements shall be shared upon finalization of the Agreement.

Project Name: Logistics Automation and Digitization – Phase-2	
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

ANNEXURE B: ADDITIONAL SOX REQUIREMENTS

1. Establish safeguards to prevent data tampering (Section 302.2)

Track user login access to all computers that contain sensitive data and detect break-in attempts to computers, databases, fixed and removable storage, and websites.

2. Establish safeguards to establish timelines. (Section 302.3)

Timestamp all data as it is received in real-time. This data should be stored at a remote location as soon as it is received, thereby preventing data alteration or loss. In addition, log information should be moved to a secure location and an encrypted MD5 checksum created, thereby preventing any tampering.

3. Establish verifiable controls to track data access. (Section 302.4.B)

Receive data messages from virtually an unlimited number of sources. Collection of data should be supported from file queues, FTP transfers, and databases, independent of the actual framework used, such as COBIT and ISO/IEC 27000.

4. Ensure that safeguards are operational. (Section 302.4.C)

Issue daily reports to e-mail addresses and distribute reports via RSS, making it easy to verify that the system is up and running from any location.

5. Periodically report the effectiveness of safeguards. (Section 302.4.D)

Generate multiple types of reports, including a report on all messages, critical messages, alerts and uses a ticketing system that archives what security problems and activities have occurred.

6. Detect Security Breaches. (Section 302.5.A/B)

Perform semantic analysis of messages in real-time and use correlation threads, counters, alerts, and triggers that refine and reduce incoming messages into high-level alerts. These alerts then generate tickets that list the security breach, send out an email, or update an incident management system.

7. Disclose security safeguards to SOX auditors. (Section 404.A.1.1)

Provide access to auditors using role-based permissions. Auditors may be permitted complete access to specific reports and facilities without the ability to actually make changes to these components or reconfigure the system.

8. Disclose security breaches to SOX auditors. (Section 404.A.2)

Detect and log security breaches, notifying security personnel in real-time, and permit the resolution to security incidents to be entered and stored. All input messages are to be continuously correlated to create tickets that record security breaches and other events.

9. Disclose failures of security safeguards to SOX auditors. (Section 404.B)

Periodically test network and file integrity and verify that messages are logged. Ideally the system interfaces with common security test software and port scanners to verify that the system is successfully monitoring IT security.

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

ANNEXURE C: PRE-QUALIFICATION / ELIGIBILITY CRITERIA

Sl. No.	Criteria	Criteria Description	Documents / Proof to be submitted
A.	Company Profile	Sole Bidder / Lead Bidder (in case of Consortium) shall be: (a) duly incorporated and validly existing under the laws of the relevant jurisdiction where it is incorporated and principally carries its business. (b) in operations for a period of at least three (3) years as on the published date of RFP. In the case of a Consortium, each member of the consortium, in addition to the Lead Bidder must also comply with the criteria above.	1. Copy of certificate of Incorporation/Registration under Companies Act 1956/ Companies Act 2013 (for Indian companies) 2. Certified copy of Memorandum and Articles of Association (in case of global companies equivalent constitutional documents) evidencing that the bidder is authorized to undertake the activities as set out in this RFP 3. Global companies to provide equivalent proof of incorporation/ Registration, along with approvals for its office in India.
B.	Company Financial Profile	Sole Bidder/Lead Bidder (in case of Consortium) shall have an average annual turnover of INR 100 Cr. from ICT/IT Infrastructure/System, Integration Services/ IT, ITES, e-Governance services business over the last three (3) Financial Years (2018-2019,2019-2020,2020- 2021). In the case of Consortium, at least 60% (i.e., INR 60 Cr.) of the turnover criteria shall be met by the Lead Bidder and the remaining can be fulfilled by the other Consortium partners. (Sole Bidder/Lead Bidder in case of Consortium must have experience in one of the following specific business areas: ICT/IT Infrastructure/ System, Integration Services/ IT, ITES, Cloud services)"	1. Audited financial statements for the last three Financial Years. 2. Statutory auditor's/CA certificate clearly specifies the annual turnover for the specified years. 3. PAN card 4. GST registration 5. In case of subsidiary or sister concern turnover CA certificate of the same to be provided
C.	Financial:Net Worth	Sole Bidder/All Consortium Partners should have positive net worth as per the audited consolidated financial statements in each of the last 3 financial years (2018-2019, 2019-2020, 2020- 2021)	- CA Certificate with CA's Registration Number & Seal

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

D.	Local Presence	Sole Bidder/ Lead Bidder (in case of a Consortium), should have an office in India, or should furnish an undertaking that the same would be established within one month of signing the contract, if the project is awarded	- Address of office in India or for global company approvals for operating such office along with the address of its office in India
E.	Certifications	Sole Bidder / Lead bidder in the consortium should have one of the below certifications. - ISO 9001:2008 or higher - ISO 20000:2011 for IT Service Management or equivalent - ISO 27001:2018 for Information Security Management System - CMMI Level 4 or higher	- Copies of valid certificate in the name of bidder (in case of Sole Bidder) - In case of a consortium all members shall submit valid certificate relevant to its operations.
F.	Company Standings	The Bidder (all members of the Consortium as applicable) shall not be blacklisted by Central Govt /State Govt/Govt. Undertaking and PSU.	- Undertaking for this on Company letterhead - In case of consortium, this needs to be provided by each of the Consortium member
G.	Manpower Strength	Sole Bidder/ Cumulative Lead bidder and Consortium member in case of a Consortium should have at least 100 IT professionals working on IT and IT Enabled Services (IT & ITES) on its payroll as of bid submission date.	Letter from HR of the Sole Bidder duly signed and sealed of the Sole Bidder, In case of a Consortium a letter from the HR of each Consortium Member
H.	Similar Project Experience	Sole Bidder/Lead Bidder or any member of the consortium should have the experience in implementation of Supply chain Management-related systems Project having at least 2 (two) of the below- mentioned components with cumulative project value not less than INR 1 crore (excluding any value of civil work) in the last 7 years	- Work order/ Contract clearly highlighting the scope of work, Bill of Material, and value of the contract/order. - Completion Certificate issued & signed by the competent authority of the Client or - Work Order and SelfCertificate of Completion (Certified by the Statutory Auditor) or - Work Order along with Phase Completion Certificate (for ongoing projects) from the client
I.	Relevant Experience	- At least 1 (one) successful cases for Mining Logistics Management Systems	Evidence on successful project completion report for 3 cases to be provided as per the format in Annexure E

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

J.	OEM Criteria	Any OEM for the solutions and products proposed should not be blacklisted Central Govt /State Govt/Govt. Undertaking and PSU. The OEM solutions proposed in the bid should have been deployed in India and successfully operationalized or under maintenance contract	Self-certification by authorized signatory of the Bidder
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Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

ANNEXURE D: PRE-BID QUERIES FORMAT

Query/Clarification Sought: (MS-Excel Sheet Format)

Sl. No.	RFP Sec. No.	RFP Sub section No.	RFP Page No.	Clause Detail as per RFP	Query/Clarification/ Suggestion

Note: Queries must be strictly submitted only in the prescribed format (.XLS/ .XLSX). Queries not submitted in the prescribed format will not be considered/ responded at all. Also, the softcopy of the queries (only in MS-Excel Sheet format) should also be submitted through email at email IDs provided in Section 4.7 (The Requester's Contact Information)

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

ANNEXURE E: PROJECT REFERENCES FOR EXPERIENCE OF BIDDER

(To be filled by the Bidder)

Project Citation Format

Relevant IT project experience	
General Information	
Name of the project	
Client for which the project was executed	
Name and contact details of the client	
Project Details	
Description of the project	
Scope of services	
Other Details	
Total cost of the project	
Duration of the project (no. of months, start date, completion date, current status)	

Project References for Experience of Bidder

Sl. No.	Name of Customer	Contact person Name	Phone, fax and e-mail of customer	Project Location	Year		

Note: Please attach a copy of the work order/ completion certificate/ purchase order/ letter from the customer for each project reference.

References of successfully completed projects of similar nature and scope in accordance with the terms of this RFP including the eligibility criteria as per Annexure C will be considered.

ANNEXURE F: PERFORMANCE BANK GUARANTEE

THIS deed of Guarantee is made this ____ day of ____ by (Bank Name), having its branch office at (Bank Address), (hereinafter referred to as the "GUARANTOR OR BANK" which expression shall unless repugnant to the context of meaning thereof include its successors and permitted assigns) in favour of ArcelorMittal Nippon Steel India Private Limited, having its Registered Office at Hazira - 394270, Dist. Surat, India (herein referred to as the AMNS which expression shall unless repugnant to the context or meaning thereof include its successors and permitted assigns).

WHEREAS (Party's Name), a private limited company having its registered office at (Party's Address), (hereinafter referred to as "Supplier/Contractor" which expression shall unless repugnant to the context or meaning thereof include its successors and permitted assigns) having accepted a Contract/letter of intent No. ____ dated ____ for Rs. ____ (Rupees ____ only) with AMNS (thereinafter called the CONTRACT) for the (Brief Scope of work) for AMNS's Mines in Odisha (more fully described in the CONTRACT).

AND WHEREAS under the terms of the said CONTRACT and in accordance with the other Conditions of CONTRACT, "Supplier/Contractor" is required to provide the AMNS with an irrevocable bank guarantee for Rs. ____ (Rupees ____ only) being ____% of the value of the said CONTRACT towards Performance Guarantee valid till the end of guarantee/warranty period.

AND WHEREAS the Guarantor at the request of "Supplier/Contractor" has agreed to give this irrevocable Guarantee,

NOW THEREFORE this deed of Guarantee covenants as follows:

1. In consideration of the aforesaid premises and in consideration of the faithful performance by "Supplier/Contractor" of the terms and conditions of the said CONTRACT has to be guaranteed by a Bank, we, the Guarantor, hereby guarantee that "Supplier/Contractor" will duly comply and faithfully perform all his obligations and responsibilities under the said CONTRACT failing which we, the Guarantor, do undertake to pay to AMNS on written demand and without demur and without reference to supplier/ contractor such amount or amounts as the Guarantor may be called upon to pay not exceeding in the aggregate a sum of Rs. ____ (Rupees ____ only).
2. The Guarantor hereby guarantees to AMNS the due compliance with and faithful performance and observance by "Supplier/Contractor" of the terms and conditions of the said CONTRACT and the Guarantor hereby undertakes that this Guarantee shall be kept valid and binding on the Guarantor from the date of receipt of payment against Commissioning in Supplier's bank account no. held with till ____ (expiry date) and this Guarantee shall not be terminable by notice or any change in the constitution of the Bank or by any other reason whatsoever and the liability of the Guarantor hereunder shall not be impaired or discharged by any extension or agreed with or without our knowledge or consent by or between the parties to the said CONTRACT.
3. We, the Guarantor, also agree that we shall not during the currency of this Guarantee herein given or during the

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

period of its extension revoke the same even by giving notices to AMNS.

4. We, the Guarantor, will on written demand from AMNS stating the amount claimed and the reasons of Supplier's failure in fulfillment of their performance/warranty obligations under the Contract, pay to AMNS the said amount not exceeding in the aggregate of Rs. _____ (Rupees _____ only) without demur and without requiring AMNS to invoke any legal remedy to compel the Guarantor to pay the same even if "Supplier/Contractor" considers such demand of AMNS unjustified.
5. Notwithstanding anything to the contrary, AMNS's decision as to whether "Supplier/Contractor" has made any default or defaults under the Contract and the amount to which AMNS is entitled by the reason thereof, will be binding on us and we shall not be entitled to ask AMNS to establish his claims under this Guarantee but we, the Guarantor, will pay the sum on demand without any objection.
6. AMNS shall have the fullest liberty from time to time, without affecting any of his rights under this guarantee to vary any of the terms and conditions of the said CONTRACT, or extend the time of performance of "Supplier/Contractor", to postpone for any time or from time to time any of AMNS's rights or powers against "Supplier/Contractor" and either to enforce or forbear to enforce any of the terms and conditions of the said CONTRACT/ and we, the Guarantor, shall not be released from our liability under this Guarantee by the exercise of any liberty by AMNS with reference to the matters aforesaid or by reason of any time being given to "Supplier/Contractor" or any other forbearance, act or omission on the part of AMNS or any indulgence granted by AMNS to "Supplier/Contractor" or by any variation or modification of the said CONTRACT or any other act matter or things whatsoever which under the law relating to sureties would but for the provision hereof have the effect of so releasing us from our liability hereunder provided always that nothing contained herein will enlarge our liability hereunder.
7. This Guarantee shall not be determined or affected by the liquidation or winding up, dissolution or change in the constitution or insolvency of the "Supplier/Contractor" or of the Guarantor but shall in all respects and for all purposes be binding and operative until payment of all moneys payable to AMNS in terms hereof.
8. This Guarantee shall come into force from date of receipt of payment against Performance Guarantee Test in Supplier's bank account no. held with and shall remain in full force as per the PO Terms. _____ i.e upto
9. This Guarantee shall continue and hold good until it is released by AMNS on the application by "Supplier/Contractor" after "Supplier/Contractor" has discharged all his obligations towards warranty under the said CONTRACT or tillwhichever is earlier. We, the Guarantor, may at our option undertake to extend the validity period of this Guarantee for any time or from time to time should it mutually agreed by AMNS and Supplier, become necessarily, for such period(s) as requested in writing by Supplier.
10. In order to give full effect to the Guarantee herein contained AMNS shall be entitled to act as if we were your Principal debtors in respect of all your claims against "Supplier/Contractor" hereby Guaranteed by us as aforesaid

Project Name: Logistics Automation and Digitization – Phase-2	AM/NS INDIA
Document Name: RFP – Logistics Automation & Digitization for AM/NS India, Mining	

and we hereby expressly waive all our rights of suretyship and other rights if any which are in any way inconsistent with the above or any other provision of the Guarantee.

11. Any notice signed by the representative of AMNS by way of request, demand or otherwise hereunder may be sent to by telex, fax or by post to the Bank addressed as aforesaid and, if sent by post, it shall be deemed to have been given at the time when it would be delivered in due course of post and in proving such notice it shall be sufficient to prove that the envelope containing the notice was posted and a certificate signed by an authorized officer of AMNS that the envelope was so posted shall be conclusive.
12. "The Supplier/Contractor" shall bear the stamp duty in respect of this instrument.
13. Our liability under this Deed of Guarantee is restricted to a sum of Rs. _____ (Rupees _____ only) and this Guarantee shall remain in force until _____, and unless a claim under the Guarantee is lodged with us within twelve month from the date of expiry of the Guarantee, i.e. on or before (Date) all your rights under the said Guarantee shall be forfeited and we shall be relieved and discharged from all liability there under.

Notwithstanding anything stated above, our liability under this Guarantee is restricted to Rs. _____ (Rupees _____ only). this Guarantee shall remain in force until _____. Unless a claim or demand made on us under the said Guarantee against us in writing on or before _____ all your rights under the said Guarantee shall be forfeited and we shall relieved and discharged from all liability hereunder.

THIS GUARANTEE IS SUBJECT TO THE UNIFORM RULES FOR DEMAND GUARANTEES (URDG) 2010 REVISION, ICC PUBLICATION NO. 758.

The Bank hereby declares that it has the power to issue this guarantee and the undersigned has full power to do so.